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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
*Superior Court of California,
County of San Francisco*

06/15/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

V.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-25-631801)

**APPENDIX OF 802 DEFENSE
RECORDS
(EXHIBITS 802-A THROUGH 802-G)**

Hearing: June 24, 2026, 9:00 a.m., Dept.
302, Hon. Joseph M. Quinn

Filing context: Filed in support of Plaintiff’s Second Supplemental Request for Judicial Notice of 802 defense filings and CGC-21-594102 trial-record gaps (Transaction 2, complements filed Supplemental RJN Exhibits 801-A through 801-I). Supports opposition to the 802 Anti-SLAPP, demurrer, and section 436 motions, June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn. Plaintiff does not ask the clerk to replace Transaction 1.

I. EXHIBIT INDEX

Exhibit	Document	Date	Vol.	Page
802-A	802 Anti-SLAPP RFJN	April 2026	9,	4
802-B	802 Anti-SLAPP MPA	April 2026	9,	10
802-C	802 Demurrer MPA	April 2026	13,	32
802-D	802 Section 436 MPA	April 2026	22,	53
802-E	MIL 8 (594102)	January 2025	17,	67
802-F	Trial scheduling and MILs order	Per docket	trial	69
802-G	Discrepancy register G-1 to G-5	June 2026		71

II. AUTHORITY TO FILE AND CLERK ACCEPTANCE

A. Plaintiff’s Right to File

Plaintiff files this appendix in pro per under Code of Civil Procedure section 1014 and California Constitution, article I, sections 3 and 16. Evidence Code sections 452, subdivisions (d) and (h), and 453 authorize judicial notice of the lodged records. Code of Civil Procedure section 1005, subdivision (b), governs timing for the June 24, 2026 hearing in Dept. 302.

B. Clerk’s Duty to Accept

Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, and 2.119 govern clerk acceptance. California Rules of Court, rule 3.1306, subdivision (c), governs lodging of voluminous exhibits. *Voorhies v. Greene* (1983) 139 Cal.App.3d 989,

1 994 to 995.

2 **C. Appendix Lodging Authority**

3 California Rules of Court, rule 3.1110(f)(4) (electronic bookmarks); rule 3.1306(c) (form of records
4 noticed under Evidence Code section 452(d)); Evidence Code sections 452(d), 452(h), and 453;
5 *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569. This appendix is lodged in support of
6 Plaintiff's Second Supplemental Request for Judicial Notice of 802 defense filings and CGC-21-
7 594102 trial-record gaps (Transaction 2, CGC-25-631802).

8 **III. FORMAT COMPLIANCE**

9 All exhibits in this volume have been processed for OCR text layer (CRC 2.256(b)), electronic
10 bookmarks (CRC 3.1110(f)(4)), and hyperlink removal (SFTC LR 8.10). Per-exhibit separator
11 covers precede each exhibit body per CRC 3.1110(f).

Dated: June 12, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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EXHIBIT 802-A

Request for Judicial Notice in Support of Special Motion to Strike (802 Anti-SLAPP RFJN)

Date Filed: April 9, 2026

DocID 10152117 (FSX txn 79007560)

Pin cites / RJN references:

- Face page: CCP section 430.70 mis-citation
- Items 5 to 8: MIL 6, MIL 8, MIL 17, scheduling order

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF SPECIAL MOTION TO
STRIKE PLAINTIFF'S FIRST AMENDED
COMPLAINT PURSUANT TO C.C.P. §
425.16 (ANTI-SLAPP MOTION)**

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 Defendant respectfully requests that the Court take judicial notice of the following items,
2 pursuant to Evidence Code sections 452 and 453:

3 1. Plaintiff's operative First Amended Complaint in the instant action. (A true and
4 correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit A.)

5 2. Plaintiff's operative First Amended Complaint in the related action,
6 contemporaneously filed with this action. That action is entitled *Rosario v. Abdelhalim, et al.*, San
7 Francisco County Superior Court Case No. CGC-25-631801). (A true and correct copy is attached
8 to the Declaration of Tyler J. O'Connell as Exhibit B.)

9 3. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
10 Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of Tyler J.
11 O'Connell as Exhibit C.)

12 4. Defendant's Substitution of Counsel, in *Rosario v. Abdelhalim*, San Francisco
13 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
14 Declaration of Tyler J. O'Connell as Exhibit D.)

15 5. Defendant's Motion in Limine # 6, filed in *Rosario v. Abdelhalim*, San Francisco
16 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
17 Declaration of Tyler J. O'Connell as Exhibit E.)

18 6. Defendant's Motion in Limine # 8, filed in *Rosario v. Abdelhalim*, San Francisco
19 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
20 Declaration of Tyler J. O'Connell as Exhibit F.)

21 7. Defendant's Motion in Limine # 17, filed in *Rosario v. Abdelhalim*, San Francisco
22 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
23 Declaration of Tyler J. O'Connell as Exhibit G.)

24 8. Order re Trial Scheduling and Motions in Limine, filed in *Rosario v. Abdelhalim*,
25 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
26 attached to the Declaration of Tyler J. O'Connell as Exhibit H.)

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1 9. Plaintiff's Judgment Notwithstanding the Verdict, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit I.)

4 10. Plaintiff's Declaration in Support of Judgment Notwithstanding the Verdict, filed in
5 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
6 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit J.)

7 11. Defendant's Opposition to Plaintiff's Judgment Notwithstanding the Verdict, filed
8 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
9 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit K.)

10 12. Plaintiff's Motion for New Trial, filed in *Rosario v. Abdelhalim*, San Francisco
11 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
12 Declaration of Tyler J. O'Connell as Exhibit L.)

13 13. Defendant's Opposition to Plaintiff's Motion for New Trial and Mistrial, filed in
14 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
15 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit M.)

16 14. Order on Plaintiff's Post-Trial Motions, filed in *Rosario v. Abdelhalim*, San
17 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
18 to the Declaration of Tyler J. O'Connell as Exhibit N.)

19 15. Plaintiff's Prayer to Judge East re: Motion for Disqualification of Judge Wong, filed
20 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
21 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit O.)

22 16. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*, San
23 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
24 to the Declaration of Tyler J. O'Connell as Exhibit P.)

25 17. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County
26 Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration
27 of Tyler J. O'Connell as Exhibit Q.)

28 ///

1 18. Plaintiff's Notice Designating Record on Appeal, filed in *Rosario v. Abdelhalim*, San
2 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
3 to the Declaration of Tyler J. O'Connell as Exhibit R.)

4 19. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
5 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
6 to the Declaration of Tyler J. O'Connell as Exhibit S.)

7 20. Plaintiff's *Original* Complaint in the instant action. (A true and correct copy is
8 attached to the Declaration of Tyler J. O'Connell as Exhibit T.)

9
10
11 Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

12
13
14 By _____
15 Chad S. Tapp
16 Tyler J. O'Connell
17 Attorneys for Defendant
18 CSAA INSURANCE EXCHANGE
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1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF SPECIAL MOTION TO STRIKE**
8 **PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing
21 is true and correct. Executed on Sacramento, California on April 9, 2026.

22 **Monique Schubert**
23 Monique Schubert

1 **EXHIBIT 802-B**

2 **Memorandum of Points and Authorities in Support of Special Motion to Strike (802**
3 **Anti-SLAPP MPA)**

4 **Date Filed: April 9, 2026**

5 **DocID 10152120 (FSX txn 79007560)**

6 **Pin cites / RJN references:**

- 7 • Section III.D (no role in litigation aside from funding)
- 8 • pp. 6 to 7 (reviewed available evidence)
- 9 • pp. 12 to 13 (court denied MILs; free to present)

10 Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

11 Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

(CODE CIV. PROC. § 425.16)

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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10 Cal. Code Regs. § 2695.7	9
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I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now advances mere variations of all the same baseless arguments he litigated at trial. The only difference from the original trial is slight: Plaintiff now targets the original defendant's *insurance carrier*, CSAA, for CSAA's alleged litigation conduct, including: investigating Plaintiff's claim, "fund[ing] and direct[ing] the defense" at trial, "making false and misleading representations" to the Court regarding discovery disputes, and ultimately defeating Plaintiff's original action. (FAC ¶ 22F). Indeed, **the FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute litigation privilege.

Conduct which takes place in the course of litigation is protected from civil suit. Engaging in insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense of an insured are all protected activities, and California courts have long held that **lawsuits premised on such conduct are barred as a matter of law.** Plaintiff's current allegations are simply a misguided effort to undo his loss at trial and punish the original defendant's insurance carrier (CSAA) for funding a successful defense. Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of either of his causes of action. **The absolute litigation privilege independently bars Plaintiff's claims, and his claims fail for several reasons.** For these reasons, the Court should strike the FAC in its entirety without leave to amend and award Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

II. SUMMARY OF ARGUMENT

Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this Court's valid judgment. The FAC focuses on all Defendant's litigation activity—in its own capacity, and by and through its counsels—resulting in a defense verdict. All the alleged conduct is protected under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial investigation and litigation conduct.

Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendant's protected litigation conduct: pre-trial investigation and communications with the Court (by and through counsel).

Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible evidence establishing he has a probability of success on his causes of action. Neither Plaintiff's *First Cause of Action for Fraud and Deceit*, nor his *Second Cause of Action for Violation of Business and Professions Code § 17200 (UCL)* can survive. This is the case for several reasons including: i) all alleged activity is protected conduct under Civil Code § 47(b); ii) Plaintiff's entire theory is, in reality, a improper collateral attack on a prior valid judgment;² and iii) Plaintiff cannot establish his claims against a *third party's* insurance carrier.

Moreover, crucially Plaintiff's true remedy for allegations in the FAC is decidedly pursuing an appeal. And, indeed, Plaintiff has filed an Appeal, which remains pending.³ However, Plaintiff has still filed this action, with no legal authority to support it, especially in light of his pending appeal. The FAC has further substantive and procedural defects, including: i) Plaintiff does not have standing to bring these claims against a third-party tortfeasor's insurance carrier; ii) Plaintiff's statute of limitations has already run for both claims, at least as pertains to the Feb. 2021 denial letter; iii) the FAC's collateral attack on the prior judgment is legally unsupportable; and iv) Plaintiff cannot state a cause of action based on Defendant denying an insurance claim, pre-trial; and retaining attorneys who maintained that denial posture at trial and prevailed before the jury.

Therefore, the action should be dismissed.

² Plaintiff's original Complaint in this action explicitly represented to the Court that "*Plaintiff does not seek reversal or modification of any judgment in the Underlying Action.*" (See RFJN **Ex. T**, Plaintiff's Original Complaint in the instant action, ¶ 31); (but see RFJN **Ex. B**, Plaintiff's FAC in Related Case) (seeking to "set aside judgment").

³ (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal).

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Plaintiff is FRANCISCUS DYLAN ROSARIO (“Plaintiff”).

Defendant CSAA INSURANCE EXCHANGE (“CSAA”) was the insurance carrier for SUBHI ABDELHALIM (“Insured”) during the underlying trial.

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's policy of insurance. This special motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by defense verdict. (*See* RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl around all the same issues in the underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam footage, and CAD logs).

It is true that CSAA's retained defense counsels *did* attempt to exclude the “objective liability evidence” (*See FAC* ¶ 4); however, the Court denied Defendant's motions in limine targeting this evidence. (*See* RFJN **Ex. E**, *Def's MIL* # 6; RFJN **Ex. F**, *Def's MIL* # 8; RFJN **Ex. G**, *Def's MIL* # 17; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.” (*See FAC* ¶ 4). And he did just that at trial.

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1 C. PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE
2 INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY
3 REJECTED AT TRIAL DESPITE THE JURY’S CONSIDERATION OF THE
4 “OBJECTIVE LIABILITY EVIDENCE” IN QUESTION

5 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-scooter
6 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle while
7 Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed suit against
8 Insured, alleging personal injuries, and the matter proceeded to trial. All the “foundational objective
9 liability evidence” (*See FAC* ¶ 4) (discussing 911 calls, bodycam footage, and CAD logs) referenced in
10 Plaintiff’s FAC was submitted to the jury and testimony was offered by both sides on the relevance (or
11 irrelevance) of that evidence. Ultimately, a defense verdict was returned in favor of the Insured. The jury
12 found that the Insured—Subhi Abdelhalim—was simply not negligent in causing the incident.

13 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial judge:
14 the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic], accompanying his
15 motions, Plaintiff drew specific attention to all the same factual complaints he makes in this current FAC,
16 which impute the acts of PSA as to Defendant (CSAA):

- 17 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the official
18 police records”; (*See RFJN Ex. O*, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 19 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured premier
20 legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 21 3) Official 911 emergency records contain multiple admissions by the defendant, and eyewitness
22 testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 23 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core part of
24 [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

25 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions seeking
26 to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same evidentiary
27 arguments presented here, in his FAC. (*See RFJN Ex. P*, *Order Denying Plf’s “Prayer” and 170.6*).
28 Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual allegations against
CSAA for its counsels’ litigation activity. This is legally untenable under the Anti-SLAPP statute.

After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this Court’s
judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See RFJN Ex. I*, *Plf’s JNOV*;
see RFJN Ex. J, *Plf’s Decl. ISO JNOV*; *see RFJN Ex. K*, *Def’s Opp. to Plf’s JNOV*); ii) Motion to Vacate;
iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New Trial (*See RFJN Ex. L*, *Plf’s*

1 *Mtn for New Trial*; RFJN **Ex. M**, *Def's Opp. to Plf's Mtn for New Trial and Mistrial*); v) Motion for
2 Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request for Stay; and viii) a Request for
3 statement of Decision. All Plaintiff's post-trial motions were denied. (See RFJN **Ex. N**, *Order on Plf's*
4 *Post-Trial Mtns*). Crucially, in those post-trial motions, Plaintiff essentially all the same meritless
5 arguments, and others, surrounding Defendant's alleged "mishandling" of the "objective liability
6 evidence" and alleged "fraud on the Court." (See *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all
7 those same arguments in this FAC against the trial victor's insurance carrier. This is legally untenable.

8 **D. DEFENDANT CSAA INITIALLY DENIED PLAINTIFF'S CLAIM AND**
9 **SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING**
10 **INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE**

11 Plaintiff alleges in his related case that everyone involved on the defense team (including the
12 original party defendant) committed "fraud on the Court." (See RFJN **Ex. B**, *Plaintiff's FAC in Related*
13 *Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several
14 legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA
15 commencing with its initial claim denial—from February 2021—and culminating in CSAA "fund[ing]
16 and direct[ing] the defense in the underlying action." (*FAC* ¶ 22F). The FAC alleges a series of factual
allegations against CSAA, which are all subject to the litigation privilege:

- 17 1) CSAA issued "a pre-litigation ... liability-claim denial letter made knowingly or recklessly and
18 used as institutional leverage to discourage or curtail an injured claimant's pursuit of a valid claim
(a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 19 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
20 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable.
(*FAC* ¶ 2)
- 21 3) the Denial Letter representation of a "concluded" investigation was materially false when made
22 because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and
23 foundational objective liability evidence for the incident, including:
 - 24 a. 911 audio;
 - 25 b. body-worn camera footage; and
 - 26 c. computer aided dispatch records. (*FAC* ¶ 4)
- 27 4) "Plaintiff alleges that CSAA's later claim activity corroborates the falsity" of the initial denial
28 letter. (*FAC* ¶ 22D)
- 5) "Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action,
Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel
subsequently repeated and perpetuated the denial pattern in court by making false and misleading
representations regarding receipt, possession, and prior production of the same foundational
objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this
continuity between CSAA's pre-litigation misrepresentation and its litigation-stage denial posture

1 further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.”
2 (FAC ¶ 22F)

- 3 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter
4 misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury
5 was deprived of the governing legal standard and foundational evidence” resulting in “a trial that
6 was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (FAC ¶ 25A)

7 All acts alleged in the FAC target CSAA’s protected litigation conduct both in its own capacity
8 (pre-litigation investigation) and for conduct undertaken by CSAA’s retained insurance defense counsel:
9 PSA. (engaging in civil discovery and arguing motions in limine). Hence, the Anti-SLAPP statute applies.

10 IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendant must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 A. **STEP ONE IS MET: PLAINTIFF’S FACTUAL ALLEGATIONS AGAINST 25 DEFENDANT ENTIRELY ARISE FROM PROTECTED ACTIVITY UNDER CODE 26 CIV. PROC. § 425.16 AND CIVIL CODE § 47(B)**

27 Each of the causes of action Plaintiff asserts against Defendant arise from protected activity under
28 the litigation privilege set forth in Civil Code § 47(b), which provides in relevant part:

A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...

“The litigation privilege . . . applies to any communication (1) made in judicial proceedings; (2)

1 by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that
2 have some connection or logical relation to the action.” (*L.G. v. M.B.* (2018) 25 Cal.App.5th 211, 219.)
3 The litigation privilege “is not limited to statements made during a trial or other proceedings, but may
4 extend to steps taken prior thereto, or afterwards.” (*Digerati Holdings, LLC v. Young Money*
5 *Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Pre-litigation statements are protected where
6 litigation is “contemplated in good faith and under serious consideration.” (*Id.*) “The wording of the statute
7 protects the right of litigants to the utmost freedom of access to the courts without fear of being harassed
8 subsequently by derivative tort actions.” (*Trinity Risk Mgmt., LLC v. Simplified Lab. Staffing Sols., Inc.*
9 (2021) 59 Cal.App.5th 995, 1004.)

10 Courts interpret “protected activity” broadly. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23.)
11 The requirement is that “the principal thrust or gravamen of the plaintiff’s cause of action” arises from
12 protected activity. (*Martinez v. Metabolife Inter’t* (2003) 113 Cal.App.4th 181, 188.) Protected activity
13 includes, in part, “any written or oral statement or writing made in connection with an issue under
14 consideration or review by a legislative, executive, or judicial proceeding... “[and] any written or oral
15 statement or writing made in connection with an issue under consideration or review by a legislative,
16 executive, or judicial body.” (Code Civ. Proc. § 425.16(e)(1)-(2).) **In short, “[s]tatements made in**
17 **litigation, or in connection with litigation, are protected by” the Anti-SLAPP statute.** (*Bergstein v.*
18 *Stroock & Stroock & Lavan LLP* (2015) 236 Cal. App. 4th 793, 803.) “When evaluating whether the
19 defendant has carried its burden under the first prong of the Anti-SLAPP statute, courts must be careful
20 to distinguish allegations of conduct on which liability is to be based from allegations of motives for such
21 conduct. Causes of action do not arise from motives; they arise from acts.” (*Hunter v. CBS Broadcasting,*
22 *Inc.* (2013) 221 Cal.App.4th 1510, 1520.) Finally, the Anti-SLAPP statute “squarely applies to any direct
23 attack on the *judgment* in [a] prior action, which resulted from [an opposing party’s] petition activity.”
24 *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 648 (*disapproved of on other grounds*).

25 Here, all the conduct alleged against CSAA relates solely to the underlying lawsuit which
26 culminated in a months-long trial: irrefutably a judicial proceeding. All this alleged conduct is protected
27 as speech concerning that litigation and petitioning activity. Plaintiff’s allegations are solely based on i)
28 CSAA’s pre-litigation investigation and claim denial of Plaintiff’s (*a third party’s*) claim; and ii) CSAA’s

position as maintained by its insurance defense counsel, in litigation both pre-trial and during trial. Plaintiff baselessly alleges that the CSAA’s conduct was “fraudulent,” purely based on denying a meritless claim and then funding and directing a successful defense at trial on that same claim.

In short, all the specific factual allegations against CSAA target protected litigation conduct and are subject to the Anti-SLAPP statute’s absolute bar from litigation.

1. CSAA’s “Liability-Claim Denial Letter” is Protected Conduct – (FAC ¶ 1)

The FAC cites no authority for the proposition that an insurance carrier’s denial of a third-party claim can possibly constitute fraud. It cannot. Moreover, the alleged conduct is absolutely protected litigation conduct.

Courts consistently take an “expansive view of what constitutes litigation-related activities within the scope of section 425.16.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 908.) Protected pre-litigation statements are those made in connection with proposed litigation contemplated in good faith and under serious consideration. (*A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1128.) The “good faith and under serious consideration” requirement “focuses on whether the litigation was genuinely contemplated.” (*People ex rel. Fire Ins. Exchange v. Anapol* (2012) 211 Cal.App.4th 809, 824.) For example, pre-litigation demand letters—intended “to notify the other party that litigation is imminent unless certain steps are taken”—are protected pre-litigation statements. (*Aronson v. Kinsella* (1997) 58 Cal.App.4th 254, 271.)

Furthermore, Courts have long found “internal investigations” conducted in anticipation of litigation to be protected activity under the Anti-SLAPP statute. (*See Laker v. Bd. of Trustees of California State Univ.* (2019) 32 Cal.App.5th 745, 753, 760.) (finding that absent any illegality, a pre-litigation internal investigation constituted an “official proceeding authorized by law” under Section 425.16). The litigation privilege has also been held to apply to “statements made prior to the filing of a lawsuit.” (*Hagberg v. California Federal Bank* (2004) 32 Cal.4th 350, 361) (*see also Home Ins. Co. v. Zurich Ins. Co.* (2002) 96 Cal.App.4th 17, 20, 22–26, (concluding that an attorney’s misrepresentation of available insurance policy limits to induce the settlement of a lawsuit is also protected). Finally, the California Supreme Court has highlighted the policy behind the Anti-SLAPP statute thus:

“...in immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during

1 trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of
2 judgments and avoiding an unending roundelay of litigation, an evil far worse than an
occasional unfair result.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.)

3 Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached
4 a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty
5 to promptly investigate Plaintiff’s then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal.
6 Code Regs. § 2695.7, the latter of which provides: “Upon receiving proof of claim, every insurer[] ...
7 shall immediately, but in no event more than forty (40) calendar days later, accept or deny the claim, in
8 whole or in part.” This is precisely what CSAA did: comply with its statutory duty and issue a denial letter
9 with an understanding that “litigation [was] imminent” unless Plaintiff’s claim was accepted. (*Aronson*,
10 *supra*, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP
11 statute.

12 **2. The FAC’s Claim that CSAA’s Denial Letter “Was Materially False” Because CSAA**
13 **“had not Obtained or Reviewed ... Objective Liability Evidence for the Incident” Again**
14 **Targets Protected Conduct (FAC ¶ 4)**

15 The same analysis above applies here to the alleged *falsity* of CSAA’s Denial Letter. This
16 allegation remains focused on protected conduct.

17 “The privilege extends beyond statements made in the proceedings, and includes statements made
18 to initiate official action.” (*Kashian, supra*, 98 Cal.App.4th at 913.) (*See Cabral v. Martins* (1999) 177
19 Cal.App.4th 471, 482 (“Case law establishes that communications that are intimately intertwined with,
20 and preparatory to, the filing of judicial proceedings qualify as petitioning activity for the purpose of the
21 anti-SLAPP statute.”) And “[a]ny doubt about whether the privilege applies is resolved in favor of
22 applying it.” (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 529.) Furthermore, “communications
23 made in connection with litigation do not necessarily fall outside the privilege simply because they are, or
are alleged to be, fraudulent, perjurious, unethical, or even illegal.” (*Ibid.* at 920.)

24 CSAA’s issuing of a liability denial letter is a statutory and regulatory requirement in the context
25 of a submitted claim and pending litigation. The FAC alleges that CSAA’s denial letter was “materially
26 false,” or put simply: incorrect. It is not clear if the FAC intends to allege that, either i) the denial letter
27 was false insofar as CSAA had not actually closed its investigation into liability; or ii) the denial letter
28 was false insofar as CSAA should have reached a different conclusion and accepted the claim. Either way,

1 it is immaterial how Plaintiff thinks the denial letter was “false.” The issuance of that denial letter—be it
2 false, negligently issued, fraudulent, or otherwise—is protected conduct and subject to the Anti-SLAPP
3 statute’s protections. This is especially so as CSAA knew that this denial was likely “to initiate official
4 action” on Plaintiff’s part in filing his lawsuit. (*Kashian, supra*, 98 Cal.App.4th at 913.)

5 **3. Plaintiff’s Claim that “CSAA Funded and Directed the Defense” and Made “False and**
6 **Misleading Representations” to the Court While Maintaining its “Litigation-Stage**
7 **Denial Posture” Targets Protected Conduct (FAC ¶ 22F)**

8 These allegations now reach directly into the courtroom and allege that statements made by
9 CSAA—by and through its insurance defense counsel—are somehow actionable. They are not. Plaintiff’s
10 FAC alleges that the activities of CSAA—by and through its retained defense counsels—were “false or
11 misleading” to the Court. (FAC ¶ 22F). This is incontrovertibly protected conduct under the Anti-SLAPP
12 statute’s protection.

13 Statements and actions defending a client or insured are protected activity under California’s Anti-
14 SLAPP statute. (*See City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 767 (concluding that an
15 allegation that a defendant engaged in unlawful, unfair, and fraudulent business acts and practices “by
16 filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely concerned protected activity
17 under the Anti-SLAPP statute and was subject to dismissal). Anti-SLAPP protection also, necessarily,
18 applies to “making representations to [a] court, or preparing documents for filing in court.” (*Graham-Sult*
19 *v. Clainos* (9th Cir. 2014) 756 F.3d 724, 736.) (*See, also, Dove Audio, Inc. v. Rosenfeld, Meyer & Susman*
20 (1996) 47 Cal.App.4th 777, 784 (“Just as communications preparatory to or in anticipation of the bringing
21 of an action or other official proceeding are within the protection of the litigation privilege of Civil Code
22 [§ 47(b)], we hold that such statements are equally entitled to the benefits of section 425.16.”) Further,
23 “a complaint [need not] be drafted before the privilege will apply.” (*Aronson, supra*, 58 Cal.App.4th at
24 268.)

25 CSAA, by and through its retained insurance defense counsel, simply defended Insured at trial and
26 disputed the relevance of the cited “objective liability evidence.” (FAC ¶ 4). CSAA, through its retained
27 counsels, maintained through jury trial the original “liability-claim denial” posture, as articulated in
28 CSAA’s initial denial letter. (*Id.* at 1.) Admittedly, the FAC is not clear on exactly *how* “CSAA-funded
counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading

1 representations regarding receipt, possession, and prior production of the same foundational objective
2 evidence CSAA had failed to obtain before issuing the Denial Letter.” (*Id.* at 22F.) Still, the allegations
3 of statements “*in court*” (*Ibid.*) are only open to one reasonable interpretation: **those statements are**
4 **petitioning activity in defending Insured at trial.** (*See City of Colton, supra*, 206 Cal.App.4th at 767
5 (concluding a defendant’s acts of “filing motions or pleadings [in] court” are protected activity under the
6 Anti-SLAPP statute). Hence, there is no question that these allegations of CSAA’s and counsels’ “in court
7 ... representations” target protected petitioning activity and litigation conduct from the underlying jury
8 trial. (*FAC* at 22F.)

9 All this, taken together, is conduct constituting protected activity under Code Civ. Proc. § 425.16.
10 Therefore, the causes of action based on those allegations fail.

11 **B. STEP TWO IS MET: PLAINTIFF CANNOT PROVE A PROBABILITY OF SUCCESS**
12 **ON HIS CLAIMS**

13 After a defendant makes a *prima facie* showing that the plaintiff’s claims arise from protected
14 activity, the burden shifts to the plaintiff to show a probability of prevailing on the merits of his cause of
15 action. (*City of Cotati, supra*, 29 Cal.4th at 76.) If the plaintiff cannot meet that burden, the claim must be
16 dismissed. (*Id.*) To establish a probability of prevailing on the claim, “a plaintiff responding to an anti-
17 SLAPP motion must state and substantiate a legally sufficient claim.” (*Huntingdon Life Sciences, Inc. v.*
18 *Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th, 1228, 1244-45.)

19 Here, as further discussed below, Plaintiff cannot meet this burden because all his allegations touch
20 on privileged publications and statements that are barred by the litigation privilege of Civil Code § 47(b),
21 as they are entirely based on statements connected with anticipated and/or ongoing litigation. Further,
22 Plaintiff cannot show a probability of succeeding on the merits of his claim.

23 **1. Plaintiff’s Claims are Barred by the Litigation Privilege in Civil Code § 47(b)**

24 Plaintiff cannot establish a probability of prevailing on the merits of his claim because all the
25 alleged acts of Defendant’s are absolutely protected under the litigation privilege. The language of Civil
26 Code § 47(b) tracks the language discussed above in the Anti-SLAPP statute. Indeed, statements protected
27 under Civil Code § 47(b) are “equally entitled to the benefits of section 425.16.” (*Briggs v. Eden Council*
28 *for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115, quoting *Dove Audio, Inc., supra*, 47 Cal.App.4th
at p. 784; *see also, Laker, supra*, 32 Cal.App.5th at p. 769 (“If the challenged action falls within the

1 litigation privilege, the trial court should grant an anti-SLAPP motion to strike.”.)

2 “A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the
3 defendant’s liability on the claim.” (*Digerati Holdings, supra*, 194 Cal.App.4th at p. 888; *see also, Laker,*
4 *supra*, 32 Cal.App.5th at p. 769 (“The privilege established by this subdivision often is referred to as an
5 absolute privilege, and it bars all tort causes of action except a claim for malicious prosecution.”), quoting
6 *Hagberg, supra*, 32 Cal.4th at 360; *see also Laffer v. Levinson, Miller, Jacobs & Phillips* (1995) 34
7 Cal.App.4th 117, 122 (Section 47(b) litigation privilege “is a defense to torts”.) Further, “[d]oubts about
8 the privilege’s applicability are resolved in favor of its use.” (*Pollock v. University of Southern California*
9 (2003) 112 Cal.App.4th 1416, 1430.)

10 The litigation privilege can satisfy both prongs of the Anti-SLAPP analysis. For example, in *Laker*,
11 the plaintiff sued his employer, Board of Trustees for California State University, for defamation arising
12 from a series of internal investigations conducted by the University. (*Laker, supra*, 32 Cal.App.5th at 753.)
13 After finding that the first prong of the Anti-SLAPP analysis was satisfied because an investigation,
14 authorized by statute, constituted an “official proceeding authorized by law” under Section 425.16, the
15 court held that the second prong was similarly satisfied because all of the statements made in connection
16 with the investigation were absolutely privileged under Civil Code § 47(b). (*Id.* at 770.)

17 The same is true here. To the extent Plaintiff claims that CSAA’s pre-litigation investigation and
18 denial letter was “fraudulent,” that cannot constitute a claim as issuing a liability position letter in a
19 contemplated litigation constitutes an “official proceeding authorized by law” under Section 425.16, like
20 in *Laker*. This logic holds all the truer with respect to Plaintiff’s allegations surrounding CSAA’s retained
21 defense counsels’ “representations” in Court, be they prior to or during trial. As discussed at length above,
22 each of Plaintiffs’ causes of action against Defendant is **premised on conduct protected by the litigation**
23 **privilege in Civil Code § 47(b), and therefore Plaintiff cannot possibly prevail.**

24 **2. Plaintiff’s FAC is an Unsupportable “Collateral Attack” on this Court’s Valid**
25 **Judgment**

26 Plaintiff is estopped from attempting this end-around of this Court’s underlying jury verdict and
27 entry of judgment. “A collateral attack is an attempt to avoid the effect of a judgment or order made in
28 some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882.) “A judgment of a court of general jurisdiction

1 can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge*
2 *v. Burns* (1968) 265 Cal.App.2d 82, 84.) Finally, “collateral estoppel precludes relitigation of issues
3 argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

4 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying case,
5 which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in this present
6 FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826);
7 (see also RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN **Ex. P**, *Order Denying Plf’s “Prayer”*
8 *and 170.6*); (RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment*).

9 **3. Plaintiff’s Substantive Claims for Fraud and UCL Violations Cannot Survive for**
10 **the Same Fundamental Reasons**

11 As a general matter, both of Plaintiff’s claims fail for the same threshold reasons. First, Plaintiff
12 lacks standing for either of the alleged claims against CSAA—a third party’s insurance carrier—given the
13 lack of privity of contract between the parties. Second, the statute of limitations applies to CSAA’s
14 February 2021 denial letter, as Plaintiff had all information necessary at that time to dispute the denial
15 letter’s position (i.e.: Plaintiff was physically present for the alleged incident that CSAA denied coverage
16 for in its 2021 denial letter). Therefore, this Court should strike Plaintiff’s entire FAC against Defendant
17 without leave to amend.

18 **i. Plaintiff Cannot Prevail on His Cause of Action for Fraud.**

19 Plaintiff’s first cause of action for Fraud is barred by Civil Code § 47(b). But even *if* it were not,
20 Plaintiff still cannot demonstrate a probability of prevailing on the merits. As a threshold matter, Plaintiff
21 is clearly trying to assail a valid jury verdict and judgment—or, at a minimum, punish the original
22 defendant’s insurance carrier for providing a meritorious defense in obtaining that judgment.

23 In contrast to Plaintiff’s effort here, the U.S. Supreme Court has long held: “[t]here are no maxims
24 of the law more firmly established, or of more value in the administration of justice, than [those] ...
25 designed to prevent repeated litigation between the same parties in regard to the same subject of
26 controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (emphasis added.)

27 Furthermore, “[a] complaint for fraud must allege the following elements: (1) a knowingly false
28 representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the

plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. “Misrepresentation, even maliciously committed, does not support a cause of action unless the plaintiff suffered consequential damages.” (*Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982, 1008.)

Here, Plaintiff cannot possibly demonstrate the required elements for fraud. First, Defendant’s representations (Feb. 2021 denial letter and “representations in Court”) were not false. CSAA denied liability and the jury agreed, culminating in the rendering of a defense verdict on liability. Second, CSAA had no “intent to deceive.” On the contrary, CSAA’s intent in issuing the denial letter was to apprise Plaintiff of a true fact: *CSAA was denying the claim for lack of liability on the part of its Insured.* This was a disputed claim. Were courts to treat a disputed claim for lack of liability as *fraud*, such a policy would lead to cascading and unending litigation—an absurd result.

Third, Plaintiff had no *reliance* on CSAA’s denial posture—maintained in denial letters and in Court. On the contrary, Plaintiff returned CSAA’s denial with disagreement and a lawsuit.

Fourth, and finally, Plaintiff has no cognizable damages. All Plaintiff’s cited damages are related to his “forced third party litigation and ...attorney-fee damages.” (*FAC* p. 9.) This is not an item of damage as it is precluded by the Economic Loss Rule. This flies in the face of the American Rule, where each side bears its own attorneys’ fees, at trial. All Plaintiff’s other cited damages fare no better as they are merely an attempt to repackage his underlying “bodily injury liability claim,” as a fraud case. (*FAC* ¶ 33.)

There are further reasons why Plaintiff’s fraud claim cannot survive. Liability cannot flow from insured to the insurance company in these circumstances. Courts have frequently held that an insurer cannot be held liable to an injured third party unless actual judgment against their insured has occurred. “Because the insurer’s duties flow to its insured alone, a third-party claimant may not bring a direct action against an insurance company. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268.) Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Mr. SUBHI ABDELHALIM. This is dispositive to these present claims.

ii. Plaintiff Cannot Prevail on His Cause of Action for Violation of the UCL.

For the same reasons discussed above, Plaintiff cannot prevail on his UCL claim. Plaintiff lacks standing and his statute of limitations has already run. Furthermore, there was nothing fraudulent or false

1 about CSAA’s claim denial in February 2021—the claim was, as CSAA stated, denied. That was a true
2 fact when stated. Neither can there be any unfairness to that claim denial as the jury agreed and rendered
3 a defense verdict on that same claim. Finally, to the extent Plaintiff’s FAC alleges that CSAA made “in
4 court” ... “false and misleading representations” regarding the “foundational objective evidence,” this,
5 again is barred by the litigation privilege and cannot constitute a claim under the UCL.

6 A “plaintiff may not use the UCL to ‘plead around’ an *absolute* bar to relief” *Zhang v. Superior*
7 *Court* (2013) 57 Cal.4th 364, 369; (see also *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46
8 Cal.3d 287, 306 (“[N]o enforceable claim accrues against the insurer until the insured’s liability is in fact
9 established.”) Indeed, “[t]he *Moradi-Shalal* court made it plain that ... violations of [Ins. Code] section
10 790.03(h) are themselves not actionable.” *Zhang, supra*, 57 Cal.4th at 369.

11 The language of Business and Professions code § 17200 states that “unfair competition shall mean
12 and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or
13 misleading advertising and any act prohibited by Chapter 1.” This section, colloquially referred to as the
14 UCL, or Unfair Competition Law, is designed to protect consumers against predatory practices by
15 businesses. This section is not meant to be a means to seek redress for a denial of a claim against a third
16 party’s insurance policy, but rather to prevent unfair competition in the marketplace. Further, the Code
17 imposes no duty on CSAA (a third party in the original matter) to provide evidence from their investigation
18 into the event involving their insured, nor does it seek to impose liability on Defendant for issuing a denial
19 letter based upon their good faith belief (and ultimately vindicated at trial) that their insured was not at
20 fault. Further, CSAA simply has no UCL liability to this *third-party* Plaintiff, in light of Plaintiff’s
21 complete failure to establish any liability as to the Insured: Subhi Abdelhalim. This alone is dispositive to
22 this claim.

23 Unfortunately for Plaintiff, he simply received an unfavorable outcome at his jury trial, which he
24 litigated in pro per. He now attempts to sue CSAA for denying his claim and forcing him to litigate,
25 unsuccessfully, through trial. This cannot constitute a valid cause of action under the UCL (nor fraud).
26 Hence, Plaintiff cannot succeed on the merits of his repackaged claims.

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V. CONCLUSION

Plaintiff's FAC is simply another attempt to get a second bite at the apple—by relitigating the same issues from his underlying jury trial. CSAA's acts with respect to its denial posture, culminating in a defense verdict, are all acts that are protected conduct under Code Civ. Proc. § 425.16 and Civ. Code § 47. Meanwhile, Plaintiff cannot demonstrate a probability of success on the merits of his claims. Therefore, Defendant respectfully requests that the Court grant this Special Motion to Strike and impose attorneys' fees and costs against Plaintiff for necessitating this motion.

Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF SPECIAL MOTION TO**
8 **STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing is
21 true and correct. Executed on Sacramento, California on April 9, 2026.

22 **Monique Schubert**
23 Monique Schubert

EXHIBIT 802-C

Memorandum of Points and Authorities in Support of Demurrer (802 Demurrer MPA)

Date Filed: April 13, 2026

DocID 10157163 (FSX txn 79038567)

Pin cites / RJN references:

- Failed to obtain foundational evidence before denial letter
- pp. 8 to 9 (jury agreed; interpretation dispute)

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANT'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

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1 Defendants CSAA INSURANCE EXCHANGE (“CSAA” or “Defendant”) submits the
2 following Memorandum of Points and Authorities in Support of its Demurrer to Plaintiff
3 FRANCISCUS DYLAN ROSARIO’s (“Plaintiff”) First Amended Complaint (“FAC”). (See RFJN
4 Ex. A, *Plaintiff’s FAC*).

5 I. INTRODUCTION

6 Plaintiff’s First Amended Complaint (“FAC”) is an improper collateral attack on a valid jury
7 verdict and judgment entered by this Court following a full and fair trial in April 2025. Plaintiff’s
8 underlying case was a personal injury case where the jury returned a defense verdict on liability.
9 Rather than pursue relief through the appellate process—which Plaintiff has in fact already
10 initiated—Plaintiff attempts to relitigate issues previously raised, litigated, and rejected by the jury
11 and the Court. Plaintiff now targets the original defendant’s insurance carrier, CSAA—in its own
12 capacity and for the acts of insurance defense counsels—for all their combined litigation conduct in
13 denying liability and proceeding to defeat Plaintiff’s personal injury lawsuit at trial.

14 The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative
15 theory that the entire defense team lied to this Court about evidence that was actually presented at
16 trial, but which Plaintiff was unable to use effectively before the jury. In short, the jury considered
17 the evidence but disagreed with Plaintiff on its importance. A good faith dispute over liability cannot
18 justify initiating a subsequent action targeting the defense for its litigation posture and conduct.
19 Setting aside the plethora of factual errors, Plaintiff’s FAC, on its face, is subject to demurrer
20 because Plaintiff’s claims, even if true, cannot obtain the requested relief.

21 Plaintiff’s entire FAC is subject to demurrer without leave to amend.

22 II. SUMMARY OF ARGUMENT

23 Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and
24 this Court’s valid judgment—while his appeal on the underlying case remains pending. The FAC
25 focuses on Defendant’s litigation conduct—in its own capacity, and by and through its counsels—
26 resulting in a defense verdict. Plaintiff’s factual allegations target conduct that is squarely protected
27 under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendant’s pre-trial

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1 investigation and litigation conduct. Therefore, Defendant has concurrently filed a Special Motion
2 to Strike under Code Civ. Proc. § 425.16.

3 Neither Plaintiff's First Cause of Action for Fraud and Deceit, nor his Second Cause of
4 Action for Violation of Business and Professions Code § 17200 (UCL) can survive demurrer.

5 First, the Court does not have jurisdiction to hear what is, in fact, an appeal of this Court's
6 prior jury verdict and final judgment. Second, Plaintiff's entire theory is, in reality, an improper
7 collateral attack on a prior valid judgment.¹ Third, Plaintiff's other pending actions—including,
8 crucially, his pending appeal—related to this same underlying case bar the present lawsuit.²

9 Fourth, Plaintiff does not have standing against CSAA *third party's* insurance carrier. Fifth,
10 Plaintiff cannot state facts sufficient to constitute a viable cause of action against Defendant. Sixth,
11 certain of Plaintiff's factual allegations are barred by the pertinent statute of limitations. Seventh,
12 all activity alleged in the FAC improperly targets Defendant's protected litigation conduct under
13 Civil Code § 47(b). And finally, eighth, the entire FAC is uncertain and legally unsupportable.

14 Therefore, the FAC is subject to demurrer without leave to amend.

15 **III. STATEMENT OF THE FACTS**

16 **A. The Parties**

17 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

18 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for
19 SUBHI ABDELHALIM ("Insured") during the underlying trial. Plaintiff now sues CSAA directly.

20 **B. Factual and Procedural Background**

21 Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original
22 defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance
23 carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of
24 ABDELHALIM's policy of insurance. This demurrer is filed on behalf of CSAA. (*See* RFJN **Ex. C**,
25 *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and

26 ¹ Plaintiff's original Complaint in this action explicitly represented to the Court that "Plaintiff does not seek reversal
27 or modification of any judgment in the Underlying Action." (*See* RFJN **Ex. T**, *Plaintiff's Original Complaint* ¶ 31)
(*emphasis added*); (*but see* RFJN **Ex. B**, *Plaintiff's FAC in Related Case*) (seeking to "set aside judgment").

28 ² (*See Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (*see also* RFJN **Ex. Q**, *Plf's Notice of*
Appeal; RFJN **Ex. R**, *Plf's Notice of Designating Record on Appeal*).

1 Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as “PSA”) were
2 CSAA’s retained insurance defense counsels who obtained a defense verdict at Plaintiff’s
3 underlying trial. (See RFJN **Ex. D**, *Defendant’s Substitution of Counsel, Rosario v. Abdelhalim*,
4 *Case No. CGC-21-594102*).

5 Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have
6 denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense
7 counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s
8 earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—
9 which Plaintiff lost by defense verdict. Now, Plaintiff seeks to recast his prior litigation as a claim
10 against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl
11 around all the same issues in the underlying case—differences of opinion on the weight of certain
12 trial evidence (911 calls, bodycam footage, and CAD logs).

13 It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective
14 liability evidence” (See *FAC* ¶ 4); however, the Court denied Defendant’s motions in limine
15 targeting this evidence. (See RFJN **Ex. E**, *Def’s MIL # 6*; RFJN **Ex. F**, *Def’s MIL # 8*; RFJN **Ex. G**,
16 *Def’s MIL # 17*; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free
17 to present to the jury, the complained-of “objective liability evidence.” (See *FAC* ¶ 4).

18 **C. Plaintiff’s Original Suit Arises Out of Allegations That the Insured Hit Plaintiff**
19 **With His Car, a Claim That Was Ultimately Rejected at Trial Despite the Jury’s**
20 **Consideration of the “Objective Liability Evidence” in Question**

21 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-
22 scooter incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s
23 vehicle while Plaintiff was walking (or riding, it is unclear) a scooter through an intersection.
24 Plaintiff filed suit against Insured, alleging personal injuries, and the matter proceeded to trial. All
25 the “foundational objective liability evidence” (See *FAC* ¶ 4) (discussing 911 calls, bodycam
26 footage, and CAD logs) referenced in Plaintiff’s *FAC* was submitted to the jury and testimony was
27 offered by both sides on the relevance (or irrelevance) of that evidence. Ultimately, a defense verdict
28 was returned in favor of the Insured. The jury found that the Insured—Subhi Abdelhalim—was
simply not negligent in causing the incident.

1 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial
2 judge: the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic],
3 accompanying his motions, Plaintiff drew specific attention to all the same factual complaints he
4 makes in this current FAC, which impute the acts of PSA as to Defendant (CSAA):

- 5 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the
6 official police records”; (*See* RFJN **Ex. O**, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 7 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured
8 premier legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 9 3) Official 911 emergency records contain multiple admissions by the defendant, and
eyewitness testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core
part of [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

10 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions
11 seeking to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same
12 evidentiary arguments presented here, in his FAC. (*See* RFJN **Ex. P**, *Order Denying Plf’s “Prayer”*
13 *and 170.6*). Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual
14 allegations against CSAA for its counsels’ litigation activity.

15 The jury thereafter returned a defense verdict on liability.

16 After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this
17 Court’s judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See* RFJN
18 **Ex. I**, *Plf’s JNOV*; *see* RFJN **Ex. J**, *Plf’s Decl. ISO JNOV*; *see* RFJN **Ex. K**, *Def’s Opp. to Plf’s*
19 *JNOV*); ii) Motion to Vacate; iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for
20 New Trial (*See* RFJN **Ex. L**, *Plf’s Mtn for New Trial*; RFJN **Ex. M**, *Def’s Opp. to Plf’s Mtn for New*
21 *Trial and Mistrial*); v) Motion for Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte
22 Request for Stay; and viii) a Request for statement of Decision. All Plaintiff’s post-trial motions
23 were denied. (*See* RFJN **Ex. N**, *Order on Plf’s Post-Trial Mtns*). Crucially, in those post-trial
24 motions, Plaintiff essentially all the same meritless arguments, and others, surrounding Defendant’s
25 alleged “mishandling” of the “objective liability evidence” and alleged “fraud on the Court.” (*See*
26 *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all those same arguments in this FAC against
27 the trial victor’s insurance carrier.

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D. Defendant CSAA Initially Denied Plaintiff's Claim and Subsequently Had No Role in Litigation, Aside from Retaining Insurance Defense Counsels and Funding the Defense

Plaintiff alleges in his related case that everyone involved on the defense team (including the original party defendant) committed “fraud on the Court.” (See RFJN **Ex. B**, *Plaintiff's FAC in Related Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA commencing with its initial claim denial—from February 2021—and culminating in CSAA “fund[ing] and direct[ing] the defense in the underlying action.” (*FAC* ¶ 22F). The FAC alleges a series of factual allegations against CSAA, related to CSAA’s litigation conduct, including:

- 1) CSAA issued “a pre-litigation ... liability-claim denial letter made knowingly or recklessly and used as institutional leverage to discourage or curtail an injured claimant’s pursuit of a valid claim (a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated, in substance, that it had “concluded” its investigation and “concluded” its insured was not liable. (*FAC* ¶ 2)
- 3) the Denial Letter representation of a “concluded” investigation was materially false when made because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and foundational objective liability evidence for the incident, including:
 - a. 911 audio;
 - b. body-worn camera footage; and
 - c. computer aided dispatch records. (*FAC* ¶ 4)
- 4) “Plaintiff alleges that CSAA’s later claim activity corroborates the falsity” of the initial denial letter. (*FAC* ¶ 22D)
- 5) “Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action, Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading representations regarding receipt, possession, and prior production of the same foundational objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this continuity between CSAA’s pre-litigation misrepresentation and its litigation-stage denial posture further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.” (*FAC* ¶ 22F)
- 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the governing legal standard and foundational evidence” resulting in “a trial that was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (*FAC* ¶ 25A)

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IV. LEGAL STANDARD

Generally, “[a] demurrer to a complaint or cross-complaint may be taken on the whole complaint...or any of the causes of actions stated therein.” (Cal. Code Civ. Proc. (“C.C.P.”), § 430.50.) A pleading may be objected to by a demurrer if the pleading does not state facts sufficient to constitute a cause of action or if it is uncertain, or the person filing the pleading does not have the legal capacity to sue. (C.C.P. §430.10.) A pleading is uncertain if it is ambiguous or unintelligible. (*Id.*) A demurrer challenges the sufficiency of a complaint by raising questions of law. (*ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) This means that a complaint must state facts sufficient to constitute a cause of action upon which relief may be based. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220.)

Moreover, a complaint must contain a statement of the facts constituting the cause of action in ordinary and concise language. (C.C.P. § 425.10(a)(1).) It must “set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source, and extent of the cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.) As such, a plaintiff must show the complaint alleges facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physician’s Services* (2000) 81 Cal.App.4th 39, 43.) A demurrer for uncertainty is intended to be directed at the uncertainty existing in the allegations actually made, not the failure to incorporate sufficient facts in the pleading. (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 146.)

When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication. (*ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

Finally, the burden of proving a reasonable possibility of curing the defect in a complaint dismissed on demurrer is squarely on the plaintiff. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 359.) A demurrer looks only to the face of the pleadings and to matters judicially noticeable, and not to the evidence or other extrinsic matters. (*Id.*) A trial court does not abuse its discretion by sustaining a demurrer without leave to amend if it appears that under applicable substantive law

1 there is no reasonable possibility that an amendment could cure the complaint's defect. (*Coffman*
2 *Specialties, Inc. v. Dept. of Transp.* (2009) 176 Cal.App.4th 1135, 1144; *Dalton v. East Bay Mun.*
3 *Utility Dist.* (1993) 18 Cal.App.4th 1566, 1570-1571.)

4 **V. LEGAL ARGUMENT**

5 The entire FAC is subject to demurrer for a host of substantive and procedural reasons,
6 including: 1) the Court does not have jurisdiction over this matter, with Plaintiff's appeal pending.
7 2) Plaintiff has other actions pending; 3) the FAC fails to state facts sufficient to constitute a cause
8 of action; 4) the entire FAC is uncertain and legally unsupportable; 5) the FAC targets Defendant's
9 protected litigation conduct under Civil Code § 47(b); 6) the FAC is an improper collateral attack;
10 7) the claims are barred by the pertinent statute of limitations; 8) Plaintiff does not have standing.

11 Therefore, the FAC is subject to demurrer without leave to amend.

12 **A. The FAC's Deficiencies Under Code Civ. Proc. § 430.10**

13 The FAC has a bevy of bases for demurrer, as enumerated in Code Civ. Proc. § 430.10,
14 which provides in relevant part:

15 The party against whom a complaint ... has been filed may object, by demurrer ...
16 to the pleading on any one or more of the following grounds:

17 (a) The court has no jurisdiction of the subject of the cause of action alleged in the
18 pleading....

19 (c) There is another action pending between the same parties on the same cause of
20 action....

21 (e) The pleading does not state facts sufficient to constitute a cause of action.

22 (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes
23 ambiguous and unintelligible.

24 **1. No Jurisdiction**

25 This Court does not have jurisdiction to hear an appeal this Court's own prior entry of
26 judgment. Plaintiff's entire FAC in reality is an unlawful and improper appeal at the Superior Court
27 level, masquerading as a new lawsuit. Code Civ. Proc. § 904.1(a) provides: that "[a]n appeal, other
28 than in a limited civil case, is to the court of appeal," including from "a judgment." Further, "once
a judgment has been entered, the trial court loses its unrestricted power to change that judgment."
Rochin v. Pat Johnson Manufacturing Co. (1998) 67 Cal.App.4th 1228, 1237.

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1 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying
2 case, which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in
3 this present FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227
4 Cal.App.4th at 826); (*see also* RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN **Ex. P**,
5 *Order Denying Plf’s “Prayer” and 170.6*); (RFJN **Ex. S**, *Notice of Entry of Judgment*). Moreover,
6 and crucially, Plaintiff’s appeal of the underlying litigation is still pending. Hence, this Court lacks
7 jurisdiction to hear the allegations as listed in the FAC.

8 2. Another Action Pending

9 The FAC is subject to demurrer as there are, in fact, not just one but two (2) other actions
10 pending. First, there is Plaintiff’s pending appeal of the underlying jury verdict and judgment. (*See*
11 *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; RFJN **Ex. Q**, *Plf’s Notice of*
12 *Appeal*; RFJN **Ex. R**, *Plf’s Notice of Designating Record on Appeal*). At a minimum, Plaintiff’s
13 pending appeal seeking to set aside the very judgment justifies demurrer.

14 Second, there is yet another action pending, entitled *Rosario v. Abdelhalim, et al.*, San
15 Francisco County Case No. CGC-25-631801. (*See also* RFJN **Ex. B**, *Plaintiff’s FAC in Related*
16 *Case*). Notably, Plaintiff’s statement in this case that “Plaintiff does not seek reversal or
17 modification of any judgment in the Underlying Action.” (*See* RFJN **Ex. T**, *Plaintiff’s Original*
18 *Complaint* ¶ 31) (*emphasis added*) is a patent misrepresentation to this Court, based on the
19 allegations in the related case that seeks that very result. Regardless, these other pending actions—
20 crucially, and most importantly, the appeal—justifies the demurrer of the FAC.

21 3. No Facts Sufficient to Constitute a Cause of Action

22 As a threshold matter, Plaintiff is clearly trying to assail a valid jury verdict and judgment—
23 or, at a minimum, punish the original defendant’s insurance carrier for providing a meritorious
24 defense in obtaining that judgment.

25 In contrast to Plaintiff’s effort here, the U.S. Supreme Court has long held: “[t]here are no
26 maxims of the law more firmly established, or of more value in the administration of justice, than
27 [those] ... designed to prevent repeated litigation between the same parties in regard to the same
28 subject of controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis added*.)

1 Here, as a threshold matter, Plaintiff’s true effort is to punish the defense for its victory on
2 the underlying jury trial. This is undeniably an attempt at a “repeated litigation” touching on all the
3 “the same subject of controversy.” *Throckmorton, supra*, 98 U.S. at 65. For this reason alone, the
4 entire FAC is subject to demurrer.

5 Still, the FAC fails to state facts sufficient to constitute a valid cause of action, for either of
6 the alleged claims: first, Fraud; or second, violation of the UCL.

7 **i. The FAC fails to State a Claim for Fraud.**

8 The FAC fails to adequately allege fraud insofar as each and every element of that claim is
9 not properly pled and therefore subject to demurrer.

10 “A complaint for fraud must allege the following elements: (1) a knowingly false
11 representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance
12 by the plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44
13 Cal.App.4th 1807, 1816. “Misrepresentation, even maliciously committed, does not support a cause
14 of action unless the plaintiff suffered consequential damages.” (*Orcilla v. Big Sur, Inc.* (2016) 244
15 Cal.App.4th 982, 1008.)

16 Here, Plaintiff cannot possibly demonstrate the required elements for fraud. First,
17 Defendant’s representations (Feb. 2021 denial letter and “representations in Court”) were not false.
18 CSAA denied liability and the jury agreed, culminating in the rendering of a defense verdict on
19 liability. Moreover, those other allegation in the FAC fare no better. Similarly, the FAC’s allegations
20 that i) “CSAA funded and directed the defense” (*FAC* ¶ 22F); and that CSAA-funded counsel
21 “subsequently repeated and perpetuated the denial pattern in court by making false and misleading
22 representations regarding receipt, possession, and prior production of the same foundational
23 objective evidence CSAA had failed to obtain before issuing the Denial Letter”; (*Ibid.*) and finally,
24 iii) that all this culminated in “a trial that was corrupted by the ongoing consequences of CSAA’s
25 initial misrepresentation.” (*FAC* ¶ 25A). None of these allegations constitute “knowingly false
26 representations.” *Clorox, supra*, 44 Cal.App.4th at 1816. All these allegations substantiate is a good
27 faith dispute over the interpretation of evidence and liability. And ultimately, the jury agreed with
28 CSAA’s position on the interpretation and relevance of that evidence, in rendering a defense verdict.

1 Second, CSAA had no “intent to deceive.” On the contrary, CSAA’s intent in issuing the
2 denial letter was to apprise Plaintiff of a true fact: *CSAA was denying the claim for lack of liability*
3 *on the part of its Insured*. This was a disputed claim. Were courts to treat a disputed claim for lack
4 of liability as *fraud*, such a policy would lead to cascading and unending litigation—an absurd result.

5 Third, Plaintiff had no *reliance* on CSAA’s denial posture—maintained in denial letters and
6 in Court. On the contrary, Plaintiff returned CSAA’s denial with disagreement and a lawsuit.

7 Fourth, and finally, Plaintiff has no cognizable damage. All Plaintiff’s cited damages are
8 related to his “forced third party litigation and ...attorney-fee damages.” (*FAC* p. 9.) This is not an
9 item of damage as it is precluded by the Economic Loss Rule. This flies in the face of the American
10 Rule, where each side bears its own attorneys’ fees, at trial. All Plaintiff’s other cited damages fare
11 no better as they are merely an attempt to repackage his underlying “bodily injury liability claim,”
12 as a fraud case. (*FAC* ¶ 33.)

13 **ii. The FAC fails to State a Claim for Violation of the UCL.**

14 For the same reasons discussed above, Plaintiff cannot prevail on his UCL claim. As a
15 threshold matter, there was nothing fraudulent or false about CSAA’s claim denial in February
16 2021—the claim was, as CSAA stated, denied. That was a true fact when stated. Neither can there
17 be any unfairness to that claim denial as the jury agreed and rendered a defense verdict on that same
18 claim. Finally, to the extent Plaintiff’s FAC alleges that CSAA made “in court” ... “false and
19 misleading representations” regarding the “foundational objective evidence,” this, again is barred
20 by the litigation privilege and cannot constitute a claim under the UCL.

21 A “plaintiff may not use the UCL to ‘plead around’ an *absolute* bar to relief” *Zhang v.*
22 *Superior Court* (2013) 57 Cal.4th 364, 369; (see also *Moradi-Shalal v. Fireman’s Fund Ins.*
23 *Companies* (1988) 46 Cal.3d 287, 306 (“[N]o enforceable claim accrues against the insurer until the
24 insured’s liability is in fact established.”) Indeed, “[t]he *Moradi-Shalal* court made it plain that ...
25 violations of [Ins. Code] section 790.03(h) are themselves not actionable.” *Zhang, supra*, 57 Cal.4th
26 at 369.

27 The language of Business and Professions code § 17200 states that “unfair competition shall
28 mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive,

1 untrue or misleading advertising and any act prohibited by Chapter 1.” This section, colloquially
2 referred to as the UCL, or Unfair Competition Law, is designed to protect consumers against
3 predatory practices by businesses. This section is not meant to be a means to seek redress for a denial
4 of a claim against a third party’s insurance policy, but rather to prevent unfair competition in the
5 marketplace. Further, the Code imposes no duty on CSAA (a third party in the original matter) to
6 provide evidence from their investigation into the event involving their insured, nor does it seek to
7 impose liability on Defendant for issuing a denial letter based upon their good faith belief (and
8 ultimately vindicated at trial) that their insured was not at fault. Further, CSAA simply has no UCL
9 liability to this *third-party* Plaintiff, in light of Plaintiff’s complete failure to establish any liability
10 as to the Insured: Subhi Abdelhalim. This alone is dispositive to this claim. Thus, the FAC is subject
11 to demurrer without leave to amend.

12 4. Uncertainty

13 The entire FAC is unintelligible and ambiguous, with such little substance that it confuses
14 the defense as to what he alleges. Only when “a complaint contains substantive factual allegations
15 sufficiently apprising defendant of the issues it is being asked to meet, [can it] survive a demurrer.”
16 (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135.) Generally, “demurrers for
17 uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38
19 Cal.App.5th 677, 695 (*citing Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th
20 841.))

21 Here, the FAC does not properly explain cognizable bases for its claims. For one, much the
22 allegations seem to focus on the conduct of CSAA’s retained trial counsels—not this demurring
23 Defendant. Further, Plaintiff does not plead with the required particularity the fraud element of his
24 claim. While demurrers for uncertainty are normally disfavored, the FAC does not explain a
25 cognizable basis for relief, or an actual cause of action.

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1 **B. The FAC Targets Protected Litigation Conduct under Civ. Code § 47(b)³**

2 The entire factual basis contained in the FAC targets privileged conduct and communications
3 under Civ. Code § 47(b), which provides in relevant part:

4 A privileged publication or broadcast is one made...(b) In any (1) legislative
5 proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized
6 by law, or (4) in the initiation or course of any other proceeding authorized by law
and reviewable pursuant to Chapter 2...

7 The entire FAC arises entirely from the privileged litigation conduct of Defendant in the
8 course of defending the third-party Insured against Plaintiff's prior lawsuit. No amendment could
9 possibly transform any of the alleged conduct into non-privileged activity, the litigation privilege
10 presents an incurable legal bar.

11 Defendants concurrently seek relief under Code of Civil Procedure section 425.16. While
12 the demurrer independently disposes of the FAC as a matter of law, the Anti-SLAPP motion
13 provides an alternative and independent basis for dismissal and recovery of fees.

14 The demurrer should therefore be sustained **without leave to amend.**

15 **C. Collateral Estoppel**

16 Plaintiff is estopped from attempting this end-around of this Court's underlying jury verdict
17 and entry of judgment.

18 "A collateral attack is an attempt to avoid the effect of a judgment or order made in some
19 other proceeding." *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
20 *Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) "An attack in a second action on an earlier
21 judgment is collateral." (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) "A
22 judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment
23 is void on the face of the record." (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, "collateral
24 estoppel precludes relitigation of issues argued and decided in prior proceedings." (*Singh v.*
25 *Lipworth* (2014) 227 Cal.App.4th 813, 826.)

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³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

1 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying
2 case—including CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1); the alleged falsity of that letter
3 (*FAC* ¶ 4); CSAA’s “Fund[ing] and Direct[ing] [of] the Defense” (*FAC* ¶ 22F); and the alleged other
4 “False and Misleading Representations” CSAA allegedly made to the Court while maintaining its
5 “Litigation-Stage Denial Posture.” (*FAC* ¶ 22F). All the key factual allegations against Defendant
6 target the third party claims denial and litigation of that denial, which culminated in a defense verdict
7 and valid judgment. Indeed, all the issues presented in this present FAC were already “argued and
8 decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826); (*see also* RFJN **Ex. H**, *Order*
9 *re Trial Scheduling and MILs*); (RFJN **Ex. P**, *Order Denying Plf’s “Prayer” and 170.6*); (RFJN
10 **Ex. S**, *Notice of Entry of Judgment*).

11 **D. Both Claims in the FAC are Barred by the Statute of Limitations**

12 Plaintiff’s allegations as to CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1) and the
13 alleged falsity of that letter (*FAC* ¶ 4) are well beyond the statute of limitations.

14 The statute of limitations for a claim under the California Unfair Competition Law (UCL),
15 codified in Cal Bus & Prof Code § 17200, is four years. Meanwhile, the statute of limitations for
16 fraud claims in California is three years, as provided under Cal Code Civ Proc § 338. It is also true
17 that “[t]he cause of action... is not deemed to have accrued until the discovery, by the aggrieved
18 party, of the facts constituting the fraud or mistake.”.] *Cansino v. Bank of America* (2014) 224
19 Cal.App.4th 1462, 1472. “To excuse failure to discover the fraud within three years after its
20 commission, a plaintiff also must plead “facts showing that he was not negligent in failing to make
21 the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put
22 him on inquiry. To that end, a plaintiff must allege facts showing the time and surrounding
23 circumstances of the discovery and what the discovery was.” (*Ibid.*)

24 Here, the FAC fails to properly allege timeliness on either the UCL claim or the fraud claim.

25 Factually, the FAC alleges that CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1) was false
26 when issued, in February of 2021. (*FAC* ¶ 4). However, Plaintiff proceeded to litigate the underlying
27 case from 2021 – 2025, culminating in a jury verdict. The FAC fails to allege any “facts showing

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1 the time and surrounding circumstances of the discovery and what the discovery was.” *Cansino*,
2 *supra*, 224 Cal.App.4th at 1472.

3 Therefore, insofar as CSAA’s claim denial letter (issued in February 2021) is concerned:
4 i) the statute of limitations ran on UCL claim in February 2025; and ii) the statute of limitations ran
5 on the fraud claim in February 2024.⁴

6 **E. No Standing**

7 Plaintiff lacks standing against Defendant in its capacity as insurance carrier for a third-party
8 insured—to whom Plaintiff lost at trial—hence this is also misjoinder.

9 “As a general rule, a third party may directly sue an insurer only when there has been an
10 assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999)
11 71 Cal.App.4th 268.) Further, California courts have consistently held that an attorney cannot be
12 sued by an adverse party for that attorneys’ actions in representing their client, except for an action
13 for malicious prosecution. (*See, e.g., Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v.*
14 *Superior Court*, (1983) 146 Cal. App. 3d 470.)

15 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi
16 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it, and seeks
17 only to sue CSAA for its role in affording a defense to its Insured, through trial. Beyond these
18 threshold bars, there are no specific allegations that CSAA made any specific misleading
19 representations to the Court, whatsoever. Indeed, CSAA—in its role as insurance carrier to the
20 original defendant—did not actually litigate the trial. Indeed, Plaintiff’s FAC improperly imputes
21 the acts of retained insurance defense counsel, against Defendant. Plaintiff cites no authority for the
22 proposition that he can hold an insurance company responsible for the litigation conduct of its third-
23 party insurance defense counsel, while defending a third-party insured. Joinder of CSAA is
24 therefore inappropriate and unsupportable. Therefore, this demurrer should be sustained without
25 leave to amend.

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28 ⁴ The other allegations in the FAC surrounding CSAA’s *trial conduct* (i.e.: CSAA’s “Fund[ing] and Direct[ing] [of]
the Defense” (FAC ¶ 22F); and the alleged other “False and Misleading Representations” to the Court (Ibid.)) may
also be barred by the statute of limitations in Code Civ. Proc. sec. 473.

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VI. CONCLUSION

For the foregoing reasons, Defendant CSAA INSURANCE EXCHANGE respectfully requests this Court sustain its demurrer to this FAC as to both of its causes of action without leave to amend.

Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **MEMORANDUM OF POINTS AND**
7 **AUTHORITIES IN SUPPORT OF DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST**
8 **AMENDED COMPLAINT (“FAC”).**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney’s 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party’s residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert

1 **EXHIBIT 802-D**

2 **Memorandum of Points and Authorities in Support of Motion to Strike Under Section 436**
3 **(802 Section 436 MPA)**

4 **Date Filed: April 22, 2026**

5 **DocID 10174569 (FSX txn 79127897)**

6 **Pin cites / RJN references:**

- 7
 - Performed investigation; reached different conclusion
- 8
 - Jury agreed; free to present objective liability evidence

9 Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

10 Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

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FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF MOTION
TO STRIKE**

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

(C.C.P. § 435 AND C.C.P. § 436)

Defendants.

DATE: May 19, 2026

TIME: 09:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025 Amended

Complaint Filed: February 25, 2026

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I. INTRODUCTION

Plaintiff's First Amended Complaint ("FAC") improperly seeks damages that are not recoverable as a matter of law, including: attorney's fees, punitive damages, and a series of allegedly compensatory damages including: "forced third party litigation" damages, lost earnings, loss of earning capacity, "lost productive time," various medical-related damages, transportation, "household assistance," emotional distress damages, "future damages," injunctive relief, prejudgment interest and other miscellaneous and legally unsupportable items of alleged damage. All these items of alleged damages arise from Plaintiff's underlying third-party litigation against a CSAA insured, where Plaintiff lost by defense verdict; hence, these alleged damages are unsupported by any statutory, contractual, or factual basis. Further, the conduct alleged in the FAC is absolutely privileged as occurring in the course of litigation. Under Code of Civil Procedure § 436, the Court is authorized to strike any irrelevant, improper, or nonconforming matter from a pleading. Because the deficiencies in Plaintiff's damages claims appear on the face of the FAC and cannot be cured by amendment, the challenged portions should be stricken in their entirety.

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II. STATEMENT OF THE FACTS

A. THE PARTIES

Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for SUBHI ABDELHALIM ("Insured") during Plaintiff's litigation of *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

B. FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's insurance policy. This motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. B**, *Register of Actions, Rosario v. Abdelhalim*, Case No. CGC-21-594102). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

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1 **1. The Underlying Litigation – Plaintiff Lost his Jury Trial by Defense Verdict**

2 The FAC’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have
3 denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels,
4 made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim
5 denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by
6 defense verdict. (*See RFJN Ex. C, Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case*
7 *No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original
8 defendant’s insurer: CSAA. The gravamen of FAC’s allegations swirl around all the same issues in the
9 underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam
10 footage, and CAD logs).

11 It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective liability
12 evidence” (*See FAC* ¶ 4); however, the Court denied Defendant’s motions in limine targeting this
13 evidence. Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.”
14 (*See FAC* ¶ 4). And he did just that at trial.

15 Each of the above claims is barred by California law as a collateral attack on a valid judgment and
16 invalid as a matter of law for seeking to target protected activity.¹ Along with these legally invalid claims,
17 Plaintiff’s FAC seeks recovery on equally invalid grounds for punitive damages (*see FAC* ¶ 1, 45, 47);
18 for lost earnings (*See FAC* ¶ 30-32); nebulous “health-related harm” damages (*see FAC* ¶ 33-36);
19 emotional distress damages (*See FAC* ¶ 37-40); and punitive damages (*See FAC* ¶ 61(5).) Plaintiff alleges
20 each of these so-called harms occurred as a result of standard litigation practices in a lawsuit that he
21 himself filed, litigated, and which a jury found to be meritless in rendering a defense verdict.

22 **2. Plaintiff’s Claimed Items of Damage to Be Stricken**

23 Plaintiff’s FAC claims a bevy of purported damages, none of which are supportable under
24 California law, in these circumstances, and all should be stricken from the pleadings.

25 **a) RELIANCE AND ECONOMIC INJURY** (*FAC*, pg. 8: line 14):

- 26 ○ out-of-pocket procurement and investigation expenses to obtain records and evidence
27 that CSAA represented had already been investigated, including:
 - 28 ▪ fees paid to obtain public records and related materials;
 - fees paid for copying, certification, and retrieval; and
 - fees paid for transcription and review of obtained audio and video. (*FAC*, ¶ 23-24).

¹ Defendant has recently filed a Demurrer and a Special Motion to Strike under Code Civ. Proc. § 425.16 (Anti-SLAPP motion).

1 **b) FORCED THIRD PARTY LITIGATION AND PRENTICE ATTORNEY-FEE**
2 **DAMAGES** (*FAC*, pg. 9: line 1-2)

- 3 ○ Plaintiff incurred fees and litigation costs in that third-party action that would not have
4 been incurred but for CSAA's Denial Letter misrepresentation. (*FAC*, ¶ 26).
- 5 ○ CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.
6 (*FAC*, ¶ 27).²

7 **c) LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE**
8 **TIME CAUSE BY FRAUD INDUCED BURDENS** (*FAC*, pg. 10: line 6-7)

- 9 ○ ...incremental burdens that required Plaintiff to spend substantial time and effort
10 obtaining, reviewing, organizing, transcribing, authenticating, and presenting
11 foundational objective evidence that CSAA represented had already been investigated
12 before issuing a categorical denial. (*FAC*, ¶ 30).

13 **d) FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL**
14 **HEALTH-RELATED HARM** (*FAC*, pg. 10: line 20-21)

- 15 ○ Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA
16 knew, or had reason to know, from the nature of the claim and the information provided
17 in connection with the bodily-injury liability claim, that Plaintiff was physically
18 vulnerable and that prolonged stress, delay, and repeated high-strain demands would
19 foreseeably impose additional physical toll. (*FAC*, ¶ 33).
- 20 ○ forced Plaintiff into a protracted and burdensome multi-year effort to establish and
21 authenticate foundational objective evidence relevant to liability, resulting in recurring
22 high-strain events including prolonged sitting, travel, preparation demands, and
23 extended periods of stress and uncertainty. (*FAC*, ¶ 34).
- 24 ○ incremental physical harm beyond the underlying collision injuries, including
25 exacerbation of pain, flare episodes, sleep disruption, deconditioning, and functional
26 decline, and that Plaintiff required additional medical or therapeutic care to address
27 these incremental harms. (*FAC*, ¶ 35).

28 **e) EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL HARM**
PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND BURDENS (*FAC*, pg.
11: line 12-14)

- CSAA's Denial Letter ... stating... CSAA had "concluded" its investigation and
"concluded" its insured was not liable"[,] ... foreseeably inflicted substantial emotional
and psychological harm by placing Plaintiff in the position of being categorically
denied while also being forced to personally bear the burden of obtaining and proving
the foundational objective evidence CSAA represented had already been investigated.
(*FAC*, ¶ 37).
- Plaintiff suffered emotional distress and psychological harm including anxiety,
persistent stress, sleep disruption, and related symptoms, as well as humiliation and
loss of dignity associated with being treated as though his claim lacked merit
notwithstanding the existence of readily obtainable objective evidence. (*FAC*, ¶ 38).
- Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to
managing these conditions. (*FAC*, ¶ 39).

f) ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EXPENSES,
TRANSPORTATION, AND HOUSEHOLD ASSISTANCE (*FAC*, pg. 12: line 7-8)

- medical visits, therapy or counseling, medication expenses, transportation expenses
associated with treatment and required events, and costs of assistance with household

² The *FAC* duplicitously claims that "Plaintiff does not seek attorney fees in this action as a prevailing-party fee award."
(*FAC* ¶ 28). Well, naturally, given that Plaintiff lost his jury trial and owes approximately \$75,000.00 in costs.

tasks and self-care that were increased by the incremental physical and psychological toll caused by the fraud-induced delay. (*FAC*, ¶ 41).

g) FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION AND ONGOING HARM (*FAC*, pg. 12: line 18-19)

- may require future medical or therapeutic care, and may continue to impair Plaintiff's ability to work and to engage in ordinary life activities. (*FAC*, ¶ 43).

h) INJUNCTIVE RELIEF (*FAC*, pg. 18: line 5)

- Enjoining CSAA from issuing denial letters stating an investigation is 'concluded.' (*FAC*, pg. 18: line 5-6)

i) COSTS OF SUIT (*FAC*, pg. 18: line 17)

j) PREJUDGMENT INTEREST (*FAC*, pg. 18: line 18).

III. LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof..." (Code Civ. Proc. § 435(B)(1).) Furthermore, "[t]he court may, upon a motion made pursuant to section 435, or at any time in its discretion, and upon terms it deems proper:

(a) strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436)

Where pleadings are defective, "the defect may be raised by a demurrer or motion to strike or by motion for judgment on the pleadings." (*Coyne v. Krempels*, (1950) 36 Cal.2d 257, 263.)

Here, each of Plaintiff's alleged damages falls squarely within this rule. Plaintiff cannot recover attorney's fees as a self-represented litigant; cannot meet the heightened pleading and evidentiary requirements for punitive damages; and cannot base any other claimed damages on conduct that is absolutely privileged under California's litigation privilege, and when he lacks standing.

IV. THE FAC'S CLAIMED DAMAGES ARE IRRELEVANT, FALSE, IMPROPER AND DO NOT CONFORM WITH THE LAWS OF THIS STATE

Plaintiff's FAC improperly seeks multiple categories of damages that are not recoverable as a matter of law and are unsupported by any cognizable factual or legal basis. As set forth below, Plaintiff's demands for attorney's fees, punitive damages, and all compensatory damages each fail independently under well-established California law. The FAC relies on conclusory allegations, improper legal argument, and conduct that is either legally privileged or wholly insufficient to meet the applicable pleading and evidentiary standards. Accordingly, these damages claims constitute irrelevant, improper, and nonconforming matter subject to strike pursuant to Code Civ. Pro. § 436.

1 **A. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR ATTORNEY’S FEES**

2 “Except as attorney’s fees are specifically provided for by statute, the measure and mode of
3 compensation of attorneys and counselors at law is left to the agreement, express or implied, of the
4 parties;...” (*Trope v. Katz* (1995) 11 Cal.4th 274, 278–279; Code Civ. Proc., § 1021.) Under California
5 law, a party litigating in propria persona is not entitled to recover attorney’s fees. (*Trope*, supra, 11 Cal.4th
6 at 292.)

7 Here, Plaintiff seeks attorney’s fees for his own time, as a pro per litigant, and for expenses
8 allegedly incurred in litigating his prior action—and this action. (FAC, p. 3, lines 12–15; p. 9, lines 16–
9 25.) However, the FAC identifies no statutory, contractual, or equitable basis for such recovery. Even if
10 Plaintiff had an attorney, which he does not, he represented himself in both the underlying litigation and
11 this action and therefore cannot recover such fees as a matter of law. (*Ibid.*)

12 Accordingly, Plaintiff’s demand for attorney’s fees is improper and should be stricken pursuant to
13 Code of Civil Procedure section 436 as irrelevant and not drawn in conformity with California law.

14 **B. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR PUNITIVE DAMAGES**

15 “A claim for punitive damages requires ‘evidence which establishes by ‘clear and convincing
16 evidence’ that the defendant has been ‘guilty of oppression, fraud, or malice.’” (*Food Pro Internat., Inc.*
17 *v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994, quoting *Stewart v. Truck Ins. Exchange*
18 (1993) 17 Cal.App.4th 468, 481-482.) This requirement is enshrined in Civil Code § 3294(a) which states
19 in relevant part that “[i]n an action for the breach of an obligation. . . , where it is proven by clear and
20 convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff. . .
21 may recover damages for the sake of example and by way of punishing the defendant.” To meet this
22 evidentiary standard, Plaintiff must present evidence that is “so clear as to leave no substantial doubt’;
23 ‘sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re Angelia P.*,
24 (1981) 28 Cal.3d 908, 919.)

25 Along with its failure to state a “breach of an obligation”, as required by Civ. Code § 3294(a), the
26 FAC presents no factual support for any fraud. Instead, the FAC seems to rely on quotations from litigation
27 related communications in which CSAA stated that it had concluded its investigation into Plaintiff’s
28 original claim. (*See FAC* ¶ 2, 4, 5, 8, 16, 17, 18, 20.) Plaintiff alleges that this denial letter, and subsequent

1 litigation conduct, constitutes evidence of fraud. Not only is the information alleged by Plaintiff proper,
2 litigation related conduct and thus subject to absolute privilege, it does not present evidence of any kind,
3 let alone “sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re*
4 *Angelia, supra*, at 919.) Instead, to support his assertion Plaintiff presents arguments which.

5 The FAC presents as evidence only an argument that, “CSAA could not have reached a conclusion
6 that its insured was ‘not liable’ in the face of its own insured’s admission of contact. The existence of this
7 admission [allegedly in a 911 call] corroborates either that CSAA never obtained the recording (rendering
8 the ‘investigation concluded’ representation false) or that CSAA obtained it and disregarded it (rendering
9 the denial reckless or fraudulent).” (*See FAC* ¶21A.) This is argument over the interpretation of evidence.
10 CSAA reached a different conclusion from the evidence, and the jury agreed with CSAA. Plaintiff’s FAC
11 fails, therefore, to present evidence which is so “clear as to leave no substantial doubt” (*In re Angelia,*
12 *supra*, at 919,) that a routine denial of an insurance claim (a denial supported by the jury’s verdict)
13 constitutes malice, oppression or fraud. Crucially, the jury reached the same conclusion that CSAA
14 reached in its investigation, that CSAA’s insured was not, in any way, liable to Plaintiff.

15 **1. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because There Has**
16 **Been No Oppression.**

17 Oppression is conduct “that subjects a person to cruel and unjust hardship in conscious disregard
18 of their rights.” (*Today’s IV v. Los Angeles Metropolitan Transportation Authority* (2022) 83 Cal. App.
19 5th 1137.)

20 To support his conclusion that CSAA’s denial of liability was improper, Plaintiff’s allegations
21 center around CSAA’s defense of it’s insured (*See FAC* at ¶ 22D, 22F.) Plaintiff was allegedly “forced ...
22 into third-party litigation in CGC-21-594102 to vindicate his claim” via routine litigation. (*See FAC* ¶ 25.)
23 Not only was Plaintiff’s claim not “vindicated”, but a properly empaneled jury rendered a “9-3 defense
24 verdict in the Underlying Action.” (*See FAC* ¶ 25A.) In sum, Plaintiff alleges that CSAA’s good faith
25 litigation defense of it’s insured from Plaintiff’s unsuccessful litigation has somehow deprived him of key
26 rights. CSAA abiding its contractual duty to fund a successful defense of its cannot constitute the requisite
27 oppression for the pleading of punitive damages.

28 ///

1 **2. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because the FAC**
2 **Cannot Allege Malice.**

3 “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or
4 despicable conduct which is carried on by the defendant with a willful and conscious disregard of the
5 rights or safety of others.” (Civ. Code, § 3294 (c)(1).) “Despicable conduct” has been defined as conduct
6 that is “so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent
7 people.” (*McNeal v. Whittaker, Clark & Daniels, Inc.* (2022) 80 Cal.App.5th 841, 866.)

8 At most, the FAC alleges that Defendant engaged in wrongful conduct by i) denying a claim; and
9 ii) funding a successful defense of that claim. (*FAC* ¶¶ 2, 3, 4, 16, 17, 21A.) Such allegations, even if
10 accepted as true, cannot be described as being “... so vile, base, contemptible, miserable, wretched or
11 loathsome that it would be looked down upon and despised by ordinary decent people.” (*American*
12 *Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) Plaintiff’s
13 FAC cannot possibly support even an inference of malice. CSAA performed an investigation, determined
14 that its insured was not liable, and informed Plaintiff of their decision. The same facts were presented to
15 a jury, and the jury agreed with CSAA’s denial position, rendering a “9-3 defense verdict in the Underlying
16 Action.” (*FAC* ¶ 25A.) This is routine practice in the insurance industry, and the objective facts as
17 presented by Plaintiff do not show conduct which was “intended by the defendant to cause injury to the
18 plaintiff or despicable conduct...carried on by the defendant with a willful and conscious disregard of the
19 rights or safety of others.” (Civ. Code § 3294 (c)(1).)

20 Therefore, CSAA’s denial of Plaintiff’s initial demand does not constitute malice, as required by
21 California law to support his demand for punitive damages.

22 **3. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because The FAC**
23 **Cannot Plead Fraud.**

24 “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.”
25 (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) When the defendant is a corporate entity, the
26 pleading standard is even higher, the Plaintiff must plead, with particularity, facts to “to show how, when,
27 where, to whom, and by what means the representations were tendered.” (*Ibid.*)

28 The FAC fails to allege facts sufficient to state a claim for fraud. In the absence of a properly

1 pleaded fraud claim, Plaintiff's demand for punitive damages in the FAC is irrelevant in improper.
2 Because the FAC has not sufficiently pled malice, fraud, or oppression, the Court should find the portions
3 of the FAC seeking punitive damages to be irrelevant and improper and strike those portions pursuant to
4 Code Civ. Proc. § 436.

5 **C. THERE IS NO BASIS FOR PLAINTIFF'S CLAIMS FOR VARIOUS COSTS,**
6 **COMPENSATORY DAMAGES, INJUNCTIVE RELIEF, OR FUTURE DAMAGES**

7 The entire factual basis contained in the FAC targets privileged conduct and communications
8 under Civ. Code § 47(b). Further, Plaintiff lacks standing to sue CSAA for the claims herein, including
9 the claim for all his alleged compensatory damages.

10 **1. The Absolute Litigation Privilege Bars the FAC's Claim for Compensatory**
11 **Damages**

12 Civ. Code § 47(b) provides in relevant part:

13 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
14 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
15 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

16 "The only exception to the application of section 47(2) to tort suits has been for malicious
17 prosecution actions." (*Ribas v. Clark* (1985) 38 Cal. 3d 355, 364.) The privilege also "poses a clear bar to
18 [an] action insofar as it is based on . . . the tort of intentional infliction of emotional distress." (*Ribas v.*
19 *Clark* (1985) 38 Cal.3d 355, 364.)

20 Here, all the conduct alleged in Plaintiff's FAC arises from statements, filings, or other
21 communicative acts undertaken in connection with prior judicial proceedings. As such, those allegations
22 fall squarely within the scope of the litigation privilege and cannot support a claim for emotional distress
23 damages as a matter of law.

24 Plaintiff has not alleged in the FAC any cause of action for malicious prosecution, nor could he do
25 so under these circumstances and facts alleged. On the contrary, Plaintiff is the party who initiated and
26 pursued the underlying litigation. Accordingly, the sole exception to the litigation privilege (malicious
27 prosecution) is inapplicable here. Accordingly, all portions of Plaintiff's FAC related to emotional distress
28 damages should be stricken pursuant to Code Civ. Proc. § 436.

1 **2. Plaintiff Lacks Standing Against CSAA to Assert a Claim for Compensatory**
2 **Damages**

3 Plaintiff lacks standing against CSAA in its capacity as insurance carrier for a third-party
4 insured—to whom Plaintiff lost at trial.

5 “As a general rule, a third party may directly sue an insurer only when there has been an assignment
6 of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th
7 268.) Further, California courts have consistently held that an attorney cannot be sued by an adverse party
8 for that attorneys’ actions in representing their client, except for an action for malicious prosecution. (*See,*
9 *e.g., Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v. Superior Court*, (1983) 146 Cal. App.
10 3d 470.)

11 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi
12 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it, and seeks only
13 to sue CSAA for its role in affording a defense to its Insured, through trial. Beyond these threshold bars,
14 there are no specific allegations that CSAA made any specific misleading representations to the Court,
15 whatsoever. Indeed, CSAA—in its role as insurance carrier to the original defendant—did not actually
16 litigate the trial. Indeed, Plaintiff’s FAC improperly imputes the acts of retained insurance defense
17 counsel, against Defendant. Plaintiff cites no authority for the proposition that he can hold an insurance
18 company responsible for the litigation conduct of its third-party insurance defense counsel, while
19 defending a third-party insured. Hence, CSAA cannot possibly be liable for Plaintiff’s underlying
20 emotional distress from a lawsuit Plaintiff lost.

21 **3. Plaintiff is Collaterally Estopped from Seeking Recovery on the Same**
22 **Damages Sought in his Underlying Jury Trial—Which he Lost.**

23 Plaintiff is estopped from simply attempting to relitigate all the same damages that he failed to
24 obtain at his underlying jury trial.

25 “A collateral attack is an attempt to avoid the effect of a judgment or order made in some other
26 proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros.*
27 *Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is
28 collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of

1 general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the
2 record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of
3 issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

4 Finally, “[t]here are no maxims of the law more firmly established, or of more value in the
5 administration of justice, than [those] ... designed to prevent repeated litigation between the same parties
6 in regard to the same subject of controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis*
7 *added.*)

8 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying case—
9 and seek all the same damages sought in the original case. All the key damages allegations against
10 Defendant target the same damages attributable to Plaintiff’s injuries in the underlying case, which
11 culminated in a defense verdict and valid judgment. Hence all the purported damages presented in this
12 FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826).
13 Hence all Plaintiff’s damages should be stricken from the FAC.

14 **4. Plaintiff Was Not the Prevailing Party at the Underlying Jury Trial and**
15 **Cannot Therefore Seek Costs.**

16 To obtain compensatory damages or prevailing party costs, Plaintiff must have prevailed at trial.
17 He did not.

18 Under Code Civ. Proc. § 1032, the term ““Prevailing party”” includes the party with a net monetary
19 recovery, ... the “prevailing party” shall be as determined by the court, and under those circumstances,
20 the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties.
21 Furthermore, “a prevailing party is entitled as a matter of right to recover costs in any action or
22 proceeding.”

23 Hence, here, all the items of Plaintiff’s alleged damages that are simply his costs in litigating the
24 underlying jury trial cannot be recovered and should also be stricken.

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V. CONCLUSION

Based upon the foregoing facts and authorities, Defendant respectfully requests that the Court issue an order striking the FAC in its entirety, or in the alternative to strike those damages items identified in Plaintiff's FAC, which are unsupportable as a matter of law.

Dated: April 22, 2026

PORTER SCOTT

A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp

Tyler J. O'Connell

Attorneys for Defendant

CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **MEMORANDUM OF POINTS AND
7 AUTHORITIES IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing is
19 true and correct. Executed on Sacramento, California on April 22, 2026.

20 **Monique Schubert**
21 Monique Schubert

VERIFY BEFORE FILING

Placeholder cover: substitute verified SFTC portal PDF before upload.

EXHIBIT 802-E

**Motion in Limine No. 8 (MIL 8) to Exclude Evidence and Statements Concerning Liability
Insurance**

Date Filed: January 17, 2025

FSX txn 80936014 (CGC-21-594102)

Pin cites / RJN references:

- Title
- Exclusion of liability-insurance-related statements

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

EXHIBIT BODY PLACEHOLDER
VERIFY BEFORE FILING

Exhibit: 802-E

Title: MIL 8 (594102)

Date Filed: January 17, 2025

Docket Reference: FSX txn 80936014 (CGC-21-594102)

Substitute the official SFTC portal or served copy before final upload.

Target filename: 802-E-MIL-8.pdf

Build timestamp: 2026-06-12 18:26 UTC

VERIFY BEFORE FILING

Placeholder cover: substitute verified SFTC portal PDF before upload.

EXHIBIT 802-F

Order re Trial Scheduling and Motions in Limine (594102; Defense RFJN Ex. H)

Date Filed: Per trial docket

RFJN Ex. H to DocID 10152117

Pin cites / RJN references:

- MIL grant/denial context for free-to-present theme

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

EXHIBIT BODY PLACEHOLDER
VERIFY BEFORE FILING

Exhibit: 802-F

Title: Trial scheduling and MILs order

Date Filed: Per trial docket

Docket Reference: RFJN Ex. H to DocID 10152117

Substitute the official SFTC portal or served copy before final upload.

Target filename: 802-F-SCHEDULING-ORDER-MILS.pdf

Build timestamp: 2026-06-12 18:26 UTC

EXHIBIT 802-G

Discrepancy Register (G-1 through G-5): 802 Defense vs. 801-Adopted Positions

Date Filed: June 2026

Generated from Second Supplemental RJN Section IV

Pin cites / RJN references:

- G-1: court denied MILs / free to present
- G-2: jury agreed with investigation
- G-3: no role in litigation aside from funding
- G-4: failed to obtain 911/BWC/CAD
- G-5: in-court statements as interpretation

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014.

Case No.: CGC-25-631802, Superior Court of California, County of San Francisco

EXHIBIT 802-G

DISCREPANCY REGISTER (G-1 THROUGH G-5)

G-1: Court denied MILs / free to present | 802-B, 802-D, 802-F, 802-E

G-2: Jury agreed with CSAA investigation | 802-C, 802-D

G-3: No role in litigation aside from funding | 802-B Section III.D

G-4: Failed to obtain 911/BWC/CAD | 802-A, 802-B, 802-C

G-5: In-court statements as interpretation | 802-C pp. 8 to 9

Complements filed Supplemental RJN Exhibits 801-A through 801-I.

See Second Supplemental RJN Section IV for full register.

EXHIBIT-VOLUME COMPLIANCE CERTIFICATE

Cohort: 802-STANDALONE

Exhibit	OCR	Links	Pages	Bytes	SHA-256 (first 16)
802-A	PASS	WARN	5	349793	6d22874cfd1b2916
802-B	PASS	WARN	21	780585	1a08e0ea2347105f
802-C	PASS	WARN	20	1093742	9722ae09fef725b3
802-D	PASS	WARN	13	1238457	f14bea842982663b
802-E	PASS	PASS	1	2391	e3a60692d0413f62
802-F	PASS	PASS	1	2424	873379d75f5f8a4c
802-G	PASS	PASS	1	2563	c54ee7fac92ff591

I certify the above table is accurate as of this build. Franciscus Dylan Rosario, Plaintiff in pro per.